

JUDGE P.D. KODE

HONOURABLE HANGMAN

He might have broken his pen nib a dozen times, but the special TADA judge is a humanist to the core

For the last 11 years, Special TADA Judge Pramod Dattaram Kode, 54, has lived and breathed the Bombay Bomb Blast Case. As in any relationship, a decade was long enough to get to know people, including the 123 tried in the case, out of whom 100 have been convicted. Though Kode sentenced Sanjay Dutt to six years' imprisonment, the actor told the judge, "You



HT PHOTO

are like family to us." He may have sent 12 people to the gallows, but Kode, one of the longest serving judges in a single court, never missed an opportunity to reach out to the ac-

ENSURING JUSTICE: Kode is the most protected judge in the state

cused. A devotee of Shirdi Sai Baba, the judge allowed them to go on Haj, carry table fans to the jail during hot summer months and watch patriotic films on August 15 and January 26.

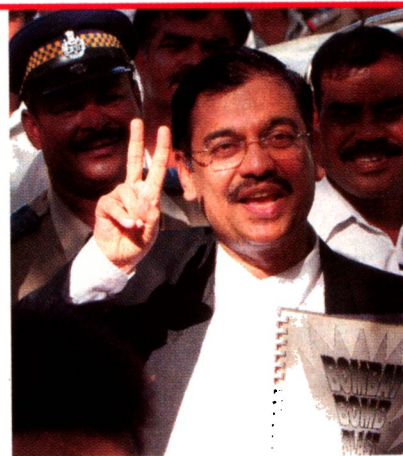
Given the sensitive nature of the trial, Kode is perhaps the only judge to have an insurance cover of Rs 25 lakh. He is also the most protected judge in Maharashtra and is on the Z-security list. The sincere Kode, who has been holding court since 1996 in a high-security makeshift building in one of the corridors of Arthur Road Jail, is nothing less than a workaholic, who reportedly never missed a day of work before he slipped and fractured his arm in June 2007.

UJJWAL NIKAM

MAN WITH A MISSION

With 587 life sentences and 14 death penalties to his credit, he's the most hated public prosecutor

Ujjwal Nikam has been living in solitary confinement for the last 14 years, in room number 310 of Hotel Residency, a modest central Mumbai hotel. For company, the 50-year-old has a handful of jail officials by day and 12 security personnel by night. Ever since he was appointed special public prosecutor in the Bombay Bomb Blast Case in 1993, life has changed forever for this advocate from Jalgaon. Living under threat and pressure hasn't been easy, but what keeps him going is the



SHRIYA PATIL

mission to bring the guilty to book. "The state wanted to appoint a lawyer who had never represented a gangster, which is why I was brought in from a mofussil town," says Nikam, who is adept at dealing with bigwigs and goons alike. On July 25, when Zakir Hussain, Abdul Akhtar Khan and Firoz Akram Amani Malik got the death penalty, the one man

COURTING DANGER: Nikam has been threatened by those convicted

they singled out was the public prosecutor. "Allah-o-Akbar," the trio cried, before turning to Nikam to say, "Tum ko dekh lenge..." (We'll have our revenge)."

One of the most expensive public prosecutors, who charges Rs 10,000 per hearing, Nikam likes to speak his mind. When Judge Kode declared Sanjay Dutt was "not a terrorist", he shot back: "Sir, under what provision of law has this court issued a character certificate to Dutt? And why was such a certificate not issued to the other accused?" He believes that the lenient stand towards the matinee idol "will send out a wrong message to society". A vociferous advocate of the death penalty, Nikam says, "The sentences in some cases are not enough, I will advise CBI to appeal to the Supreme Court."

ings of guilt as also the quantum of the sentence given to him."

In fact, in a sting operation before the judgement, *Tehelka* got Maneshinde to admit that his client had no chance of getting relief of any kind from the Supreme Court. Aired on Aaj Tak, the *Tehelka* sting has Maneshinde saying, "Tomorrow the Supreme Court can ask that if a dozen people in the case were tried under

TADA, then why not Sanjay Dutt? The court can well question if the person who delivered the gun to Sanjay—Baba Chouhan—has been tried under TADA, then why not Sanjay Dutt too?"

Legal experts believe that the course of action can only be determined once the judgement copy, with the judge's reasoning in detail, is available. Lambasting emotional statements by politicians and actors,

Jethmalani says, "We can't have emotional outbursts after the sentencing. What is happening is completely absurd. We can't have popularity polls to decide whether Dutt deserved the sentence. It is decided on evidence, which the learned judge has considered."

That, ultimately, remains the bottomline. Dutt was truly shaken when the verdict was announced and his conversation with Kode, in itself